

THE SENIOR ADVOCATE OF NIGERIA: ORIGIN, EVOLUTION AND ROLE OF THE RANK IN SHAPING NIGERIA'S LEGAL PROFESSION

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ABSTRACT

The Rank of Senior Advocate of Nigeria, SAN, established in 1975 under the Legal Practitioners Act and modeled after the English Queen's Counsel, remains the highest professional distinction in Nigeria's legal system. Beyond its ceremonial prestige, the SAN rank has evolved into a legacy institution that sets standards of advocacy, enriches jurisprudence, and reinforces the ethical foundation of the Bar. Holders of the rank have played pivotal roles in landmark constitutional and electoral cases, mentored generations of lawyers, and contributed significantly to legal scholarship and policy reforms. Despite criticisms of elitism, gender imbalance, and dominance within litigation practice, ongoing reforms by the Legal Practitioners Privileges Committee (LPPC) have sought to preserve its integrity and relevance. This paper traces the origin and evolution of the SAN rank, critically examines its transformative role in shaping Nigeria's legal profession, and argues that sustaining its legacy requires adaptability, inclusivity, and a renewed commitment to excellence and service to justice.

INTRODUCTION

The legal profession has long been described as noble, a bastion of justice, and a calling built on integrity, honesty, and service. Lawyers are not mere advocates for Clients; they are officers of the court, custodians of societal conscience, and defenders of the rule of law¹. Their words can build or break lives and their actions echo beyond courtrooms, into the very heart of national values.

¹ Niki Tobi, *The Role of Lawyers in the Administration of Justice*, Nigerian Law Journal (2004) p. 21

The legal profession has always been one of the most respected and reputable professions across all jurisdictions². Every legal system establishes benchmarks of excellence that distinguish advocates who exemplify the highest standards of learning, advocacy, and integrity. The ranking of courtroom advocates for exceptional contributions to the administration of justice is a historical tradition practiced in the United Kingdom (UK). The title is referred to as King's Counsel or Queen's Counsel depending on the monarch in power. The practice has been adopted by other common law territories, with diverse nomenclature, in Kenya – Senior Counsel, Canada – Queen's Counsel, South Africa – Senior Counsel³. In Nigeria, this distinction is encapsulated in the conferment of the rank of Senior Advocate of Nigeria (SAN)

Since its inception in 1975, the conferment of the rank of Senior Advocate of Nigeria, SAN has come to represent the pinnacle of professional accomplishment in the Nigerian legal profession. It is more than a mere title; it is a badge of honour, a recognition of excellence, and an invitation to a higher calling in the service of justice.

The conferment of the rank of Senior Advocate of Nigeria, SAN represents the highest mark of distinction and honour attainable by a legal practitioner in Nigeria. It is a recognition of outstanding advocacy, professional excellence, and unwavering dedication to the cause of justice. The rank stands as a symbol of prestige, integrity, and leadership at the Nigerian Bar.

To be admitted into the Inner Bar is to join a distinguished class of advocates, whose contributions have left indelible marks on the growth of jurisprudence and the advancement of the legal profession in Nigeria. The rank is a testament not only to individual achievement but also to the enduring values of competence, service, and ethical responsibility. It is a reward for past excellence and a call to even higher service in the pursuit of justice and the defence of the rule of law.

In this presentation, we will examine the origin of the rank, its evolution over the years, and the profound role it continues to play in shaping the Nigerian legal landscape.

THE RANK OF SENIOR ADVOCATE OF NIGERIA – MEANING AND WHAT IT REPRESENTS

SAN stands for Senior Advocate of Nigeria. It is an honorary rank/title that is conferred on distinguished legal practitioners in Nigeria with not less than ten years post call practice experience. It is a title given to a lawyer in Nigeria who has achieved recognition for his extraordinary legal abilities and contributions to the legal jurisprudence.

² <https://thenationonline.net/roles-obligations-of-the-bench-bar-in-justice-delivery/>

³ Ibid

It is not an academic degree or a professional certificate, but an honorary rank conferred as a mark of excellence and recognition. To be elevated to the Inner Bar is to be publicly acknowledged as a lawyer, whose mastery of advocacy, depth of knowledge, and fidelity to the cause of justice have distinguished them among their peers.

In some cases, the rank of Senior Advocate of Nigeria may also be conferred on a legal professional who is not engaged in full and active practice but has excelled in the academic sphere. Such recognition is given to scholars who, through teaching, research, and influential publications, have made significant contributions to the advancement of legal knowledge with works that serve as vital references for legal practitioners, Judges, law lecturers, and law students alike.

Much like the Queen's Counsel (QC) tradition in England from which it was inspired, the rank represents the pinnacle of achievement at the Bar, symbolizing not only exceptional skill in legal practice but also the highest standards of professional ethics.

Beyond the individual honour, the rank carries with it a collective significance for the legal profession and for society at large. It represents a commitment to the ideals of integrity, leadership, and service, reminding both the recipient and the wider profession of the nobility of the legal calling. A Senior Advocate is expected to be more than a successful advocate in court; he or she is also a mentor to younger lawyers, a custodian of ethical values, and a contributor to the development of law and jurisprudence.

The rank is conferred by the Legal Practitioners' Privileges Committee (LPPC) and carries with it certain exclusive privileges, distinctions, and responsibilities that set its holders apart within the legal profession.

In essence, the rank is not simply a reward for past accomplishments, but an enduring responsibility to uphold the dignity of the legal profession and to inspire future generations in the pursuit of justice.

HISTORICAL FOUNDATION AND EVOLUTION OF THE RANK OF SENIOR ADVOCATE OF NIGERIA

The introduction of the rank of Senior Advocate of Nigeria began with the introduction of English laws in Nigeria and the efforts of Nigerian lawyers to attain the prestigious rank of Queen's Counsel.

The Queen's Counsel (QC), or King's Counsel (KC) as the case may be, originated from appointments made by **Letters Patent** to certain lawyers, practicing in England, designating them as 'Her (or His) Majesty's Counsel, learned in the law'. The first Queen's Counsel was **Sir Francis Bacon**, who received a patent granting him precedence at the bar in **1603**. Over time, appointment as QC became the recognized mark of distinction for barristers,

signifying their elevation to the senior ranks of the profession. Historically, QCs were appointed almost exclusively from the ranks of barristers, as they were the advocates permitted to represent the Crown in court. Even though restrictions on taking private clients were eventually eased, the rank continued to be reserved for barristers, who held exclusive rights of audience in the higher courts.

The rank of the Queen's Counsel is linked to our colonial roots. The history of Nigeria's present legal system can be traced directly to the introduction of English law into the then Lagos colony in 1863. Soon after, the Supreme Court of her Majesty's settlement of Lagos was created for the better administration of justice. **The Supreme Court Ordinance No. 4 of 1876** also made provisions for the admission of legal practitioners. It empowered the Chief Justice to admit as barristers and solicitors of the Supreme Court, persons already qualified as barristers and solicitors in London, Dublin, or Edinburgh, as well as solicitors or writers to the Signet in those jurisdictions.

At the time, there were very few qualified lawyers in the colony, and to fill this gap, the courts temporarily allowed certain persons thought to be 'fit and proper' to act as barristers and solicitors. Although they lacked formal professional qualifications, they possessed some Western education and a basic knowledge of English law. They became known as "local-made solicitors," "colonial solicitors," or "self-taught attorneys."

However, the proclamation of the protectorates brought a surge of African lawyers and as the number of qualified practicing lawyers increased, the reliance on local attorneys reduced. Although the requirements for admission to the bar in Nigeria mirrored those in the United Kingdom, the professional reward system greatly differed. In England, barristers who distinguished themselves could aspire to be conferred the prestigious rank of Queen's Counsel, but no such recognition existed in Nigeria.

The earliest known effort to confer the rank of QC (KC then) on a Nigerian lawyer took place in 1903, when **Sir William MacGregor** (the then Governor of Lagos Colony) recommended the appointment of **Christopher Alexander Sapara Williams** for the rank of King's Counsel. Despite his impressive credentials, both the Governor's recommendation and Williams' own subsequent application failed. This rejection was due to the prevailing colonial bias that existed at that time. The matter resurfaced in 1939 when **M Rhodes**, a lawyer and member of the Legislative Council, urged the government to give greater recognition to African lawyers by appointing some of them as King's Counsel. His proposal was, however, dismissed on the grounds that such an appointment would actually harm those selected, as it would confine their practice to a limited number of high-value or high paying cases.

Thus, despite the presence of several accomplished African lawyers at the Bar since the 1880s, none was considered suitable for the conferment of the rank of King's or Queen's Counsel.

It was not until 1958, nearly 78 years later, that this resistance was finally broken. The breakthrough came through the efforts of the then **Federal Attorney-General**, who informed the Nigerian Bar Association (NBA) of his intention to introduce a Bill to the Federal House of Representatives creating the rank of Queen's Counsel for Nigerian legal practitioners. The Nigerian Bar Association (NBA) established a committee to study the proposal, and its recommendations were adopted by the General Meeting in September 1958.

The Bill was eventually passed into law as the **Queen's Counsel Ordinance No. 54 of 1958**, and **Chief Hezekiah Oladipo Davies** and **Chief Frederick Rotimi Alade Williams** became the first Nigerians to be appointed Queen's Counsel under this Ordinance in 1959. Following Nigeria's transition to a Republic in 1963, the rank was abolished in 1964 by the **Queen's Counsel (Abolition) Act No. 12**, which also removed all references to "Counsel to Her Majesty" from the Legal Practitioners Act.

Following the abolition of the Queen's Counsel title in Nigeria, it became necessary to establish a new rank to take its place. This led to the enactment of the **Legal Practitioners (Amendment) Decree No. 25 of 1974**, which formally introduced the rank of **Senior Advocate of Nigeria, SAN**. The Decree provided that the honour could be conferred on distinguished legal practitioners who had been in practice for not less than ten years. The appointment to the rank of this honour was made by the then Head of Federal Military Government after consultation with the Legal Practitioners' Privileges Committee.

The first two distinguished lawyers who were conferred with the rank of Senior Advocate of Nigeria were **Chief Frederick Rotimi Alade Williams** and **Dr. Nabo Bekinbo Graham-Douglas**, who were elevated to the rank in April 1975.

Since its establishment in 1975, the Senior Advocate of Nigeria rank has steadily evolved into a prestigious title within our legal system. What began with just two pioneers has grown into a community of hundreds of distinguished senior advocates across the Nation.

The conferment of the rank of SAN is now expressly provided for under **Section 5(1&2) of the Legal Practitioners Act (LPA), which empowers the Legal Practitioners' Privileges Committee (LPPC)** to confer the title on qualified legal practitioners.

The section provides that:

(1) Subject to subsection (2) of this section, the Legal Practitioners' Privileges Committee established under subsection (3) of this section

may by instrument confer on a legal practitioner the rank of Senior Advocate of Nigeria.

(2) A person shall not be conferred with the rank of Senior Advocate of Nigeria unless he has been qualified to practise as a legal practitioner in Nigeria for not less than ten years and has achieved distinction in the legal profession in such manner as the committee may from time to time determine.

The provision makes it clear that only lawyers who have been in practice for at least ten years and who have attained distinction in the profession may be considered for the conferment of the rank. It shows that the rank is not an automatic recognition of seniority by years of practice alone, but rather a deliberate acknowledgment of outstanding merit and contribution to the legal profession.

Over the years, the **Legal Practitioners' Privileges Committee (LPPC)** has improved the criteria for selection, emphasizing not only excellence in advocacy but also contributions to legal scholarship, professional ethics, and mentorship of younger lawyers. The conferment process has become more rigorous and competitive. The process to the selection for the rank of SAN is conducted in strict confidence. This is a reflection of the importance attached to the rank. Today, candidates are evaluated not just on their record in court, but also on their role in advancing the development of the law and strengthening the Rule of Law.

Finally, from its roots in the colonial system of the rank of Queen's counsel, the establishment of the Senior Advocate of Nigeria Rank represents the profession's desire to preserve a system of honor and distinction. What started with the conferment of silk on just two pioneers has now become a tradition, standing as a legacy of history and a living institution, shaping the standards of legal practice in Nigeria.

PRIVILEGES AND RESTRICTIONS OF THE RANK OF SENIOR ADVOCATE OF NIGERIA

The conferment of the rank of Senior Advocate of Nigeria comes with certain exclusive privileges that honour the recipient and also preserve the prestige of the rank within the legal profession. Among the most notable of these privileges are:

1. Exclusive Right to sit at the Inner Bar

The Inner Bar in the courtroom is reserved solely for legal practitioners who have attained the rank of Senior Advocate of Nigeria. Although they remain subject to the order of precedence and are ranked below the Attorney General of the Federation and Attorneys General of States, the right to sit at the inner bar is exclusively reserved for SANs. This privilege reflects their elevated professional standing and symbolizes

their admission into the most distinguished cadre of advocates in Nigeria.

2. Right of Precedence:

Legal practitioners conferred with the rank enjoy the privilege of precedence in court proceedings. They have the right to mention any motion in which they are appearing, or any other cause or matter which is on the list for mention (and not otherwise for hearing), out of its turn on the cause list. This privilege shows the respect and priority accorded their position at the Bar.

3. Wearing of Silk:

The ceremonial gown of silk distinguishes SANs from other advocates, giving rise to the expression “taking silk.” This unique attire not only marks their elevation to the Inner Bar but also explains why they are often referred to as “Learned Silk.”

4. Professional Recognition:

The SAN rank carries social and professional prestige, placing its holders among the most respected voices in the legal profession in Nigeria. This privilege enables them to be regarded as leaders of thought and authority, both within the courts and the community at large.

These privileges are balanced by restrictions designed to uphold the dignity and integrity of the rank. Some of the restrictions are:

1. Limitation on Appearances in Court

A Senior Advocate of Nigeria cannot appear as counsel in any civil or criminal matter before a superior court unless accompanied by a junior counsel or another Senior Advocate. This restriction highlights the expectation that SANs must train and mentor younger lawyers, thereby reinforcing the profession’s continuity.

2. Ethical Expectations

The conduct of Senior Advocates of Nigeria, both in and outside the courtroom, is subject to heightened scrutiny as leaders of the Bar. They are expected to uphold the highest ethical standards and serve as role models to the legal profession at large.

3. Limitation on Application for Processes

A Senior Advocate of Nigeria is not permitted to apply for issuance of court processes in any matter before an inferior court. This restriction is aimed at maintaining the dignity of the rank by ensuring SANs focus on matters that warrant their level of expertise and distinction.

4. Obligation to Excellence

Holders of the rank of Senior advocates of Nigeria are expected to take on significant cases befitting their status and avoid engaging in frivolous or improper litigation. This preserves the honour of the rank and ensures that SANs contribute meaningfully to the growth of legal jurisprudence.

5. Minimum Fees

Under the **Senior Advocates of Nigeria (Privileges and Functions) Rules**, minimum fees are prescribed for legal services rendered by SANs, such as the drafting of legal instruments. Similarly, the **Legal Practitioners Remuneration Order** provides the minimum fees that may be charged by SANs in respect of certain briefs. These provisions reflect the premium attached to the services of those who hold the rank.

6. Regulation by the LPPC

The Legal Practitioners' Privileges Committee (LPPC) retains the supervisory authority over SANs and has the power to discipline, suspend, or even withdraw the rank from any Senior Advocate of Nigeria who fails to uphold its standards.

The rank of Senior Advocate of Nigeria is one of immense prestige, carrying with it both privileges and responsibilities. While it confers professional honour and recognition, it equally binds its holders to a higher standard of integrity, service, and accountability.

THE ROLE AND SIGNIFICANCE OF THE RANK OF SENIOR ADVOCATE OF NIGERIA IN SHAPING THE LEGAL PROFESSION

The conferment of the rank of Senior Advocate of Nigeria is more than a recognition of personal excellence in advocacy; it is also a call to leadership in the administration of justice and the development of the legal profession. Therefore, to my mind, a Senior Advocate of Nigeria has seven principal roles in shaping the legal profession.

1. Assist the court in achieving Justice

The first and most fundamental role of a SAN is to assist the court in achieving justice in both civil and criminal litigation. A Senior Advocate of Nigeria must ensure that disputes are resolved on the basis of law and evidence, not through technical manoeuvres or deceptive tactics. This requires mastery of facts, procedural and substantive law, and a commitment to candour before the court.

Senior Advocates of Nigeria have historically played a leading role in the advancement of justice and the protection of human rights in Nigeria. Because they occupy the apex of legal practice, SANs are often at the forefront of high-profile constitutional and public interest litigation that defines the

scope of citizens' rights and government accountability. Their professional standing, resources, and credibility make them uniquely positioned to challenge abuses of power and to give voice to marginalized or vulnerable groups.

Throughout Nigeria's legal history, SANs have been instrumental in expanding the frontiers of human rights. For example, Chief Gani Fawehinmi, SAN dedicated much of his career to fighting for civil liberties, freedom of the press, and accountability in governance, often taking up cases against powerful state actors.

Moreover, through their participation in law reform processes, bar associations, and constitutional debates, SANs help strengthen Nigeria's legal framework for human rights protection. Their influence extends beyond the court rooms, they are frequently called upon to serve in judicial commissions of inquiry, constitutional review committees, and international human rights bodies, where they contribute their expertise to shaping policies that uphold fundamental freedoms. The prestige of the rank must be tied to a commitment to the wider public good.

In essence, SANs function as champions of justice, using their position not only to protect individual rights in court but also to strengthen democratic institutions, promote the rule of law, and ensure that Nigeria's legal system evolves in line with global human rights standards.

2. Advocacy, Jurisprudence and legal scholarship

One of the most significant contributions of Senior Advocates of Nigeria lies in their role as advocates in landmark cases that have shaped Nigerian jurisprudence. Over the years, SANs have appeared in disputes that touch on constitutional interpretation, electoral law, commercial disputes, and fundamental rights enforcement. Through their arguments, SANs have clarified ambiguities in the law, expanded constitutional protections, and set judicial precedents that continue to guide the courts. Their advocacy has, in many respects, defined the contours of Nigerian legal jurisprudence. This important role is one every legal practitioner conferred with the rank of SAN must take seriously, as it extends to the root of the conferment of the rank.

In addition to courtroom advocacy, many SANs play active roles in legal scholarship. Some, like Professors who attained the rank through the academic pathway, contribute by producing authoritative textbooks, journal articles, and commentaries that serve as references for both courts and practitioners. Their work often influence judicial decisions and legislative reforms, thereby enriching the intellectual foundations of the profession.

Through seminars, bar conferences, and continuing legal education programs, SANs also shape the intellectual discourse of the Bar. Their lectures, keynote addresses, and published papers often provide guidance on

contentious areas of law and suggest pathways for reform. This dual role; practical (in court) and academic (in scholarship), make SANs indispensable to the evolution of Nigeria's legal system. In essence, SANs function as both architects of legal precedent and custodians of legal knowledge, ensuring that Nigerian jurisprudence remains dynamic, intellectually robust, and responsive to societal needs.

3. Ethical Leadership and Mentorship.

A central role of Senior Advocates of Nigeria in shaping the legal profession is the duty of ethical leadership and mentorship. The conferment of the rank is not just a recognition of professional excellence; it is also a call to higher responsibility. They are regarded as the leaders of the Bar, and as such, they are expected to set the tone for the entire profession in matters of integrity, discipline, and ethical practice.

By virtue of their status, they are constantly in the public eye before the courts, at the Nigerian Bar Association, and in society at large. Their conduct, therefore, serves as a model for younger practitioners, who often look up to them for guidance. The Legal Practitioners' Privileges Committee (LPPC) Guidelines, particularly the 2022 version, emphasizes that SANs must uphold unimpeachable character, avoid unethical practices such as touting or lobbying, and support initiatives that promote access to justice. This reinforces their role as custodians of professional values.

Mentorship is another critical aspect of their leadership. SANs are expected to train and nurture junior counsel, exposing them to courtroom practice, procedural skills, and professional etiquette. Many chambers led by SANs serve as schools of advocacy, where upcoming lawyers learn the craft of legal practice under their supervision. By transmitting these skills and values, SANs ensure the continuity of high professional standards across generations.

Historically, some SANs like Chief FRA Williams SAN, Chief Gani Fawehinmi SAN, and others combined advocacy with public-spirited mentorship, grooming many of today's leading advocates and jurists. Their influence demonstrates that the rank is not only about personal prestige but also about building institutional legacy for the legal profession.

In summary, SANs function as ethical leaders and mentors, guiding the moral compass of the profession while preparing the next generation of lawyers to uphold the dignity, discipline, and excellence that the rank itself symbolizes.

4. Guard the sanctity of the Legal Profession

A further role is that of guardianship over the legal profession itself. Senior Advocates of Nigeria, as the elite of the Bar, are expected to safeguard the profession's integrity, define its standards, and uphold discipline among its members. Their responsibility goes beyond individual cases and extends to the collective survival and progress of the legal system. In this capacity, SANs

shape the Nigerian legal profession by championing reforms, protecting ethical standards, and working to enhance Nigeria's reputation as a centre for legal excellence, particularly in fields such as commercial dispute resolution.

5. Guardians of the Profession's Prestige

The conferment of the rank of Senior Advocate of Nigeria is not only a recognition of personal excellence but also a symbolic embodiment of the honour, dignity, and prestige of the Nigerian legal profession. They, therefore, play vital roles as guardians of the Bar's reputation, ensuring that the profession retains its integrity, credibility, and high public standing.

By virtue of their privileges such as the right of first audience in all courts and the exclusive silk gown, SANs represent the elite class of legal practitioners. These symbols are more than ceremonial, they are reminders of the responsibility to uphold the nobility of the profession. The conduct of SANs, both in and out of court, is held to a higher standard because it directly reflects on the public perception of the legal system. Any misconduct by a SAN risks not only their personal reputation but also the image of the profession as a whole.

To safeguard this prestige, the Legal Practitioners' Privileges Committee (LPPC) imposes strict ethical obligations on SANs. They are expected to maintain professional discipline, avoid touting for briefs, and contribute to access-to-justice initiatives, including **pro bono** work. In fact, the 2022 Guidelines empower the LPPC to suspend or withdraw the rank if a SAN is found guilty of misconduct, underscoring the idea that prestige must always be tied to responsibility.

Moreover, SANs enhance the profession's prestige internationally. Their participation in international arbitration, cross-border litigation, and global legal forums project Nigeria's legal expertise on the world stage, reinforcing the Bar's status beyond national borders. Domestically, their leadership roles in the Nigerian Bar Association and contributions to law reform further ensure that the legal profession maintains its relevance, respect, and moral authority in society. In essence, SANs serve as custodians of the dignity of the legal profession. Their status demands that they protect its traditions, uphold its values, and exemplify its finest qualities—ensuring that the Nigerian Bar remains an institution of honour, trust, and public confidence.

6. Contributions to Legal and Constitutional Development

Senior Advocates of Nigeria play prominent roles in driving legal and constitutional reforms. Many have contributed to debates and policy-making processes that have shaped Nigeria's legal landscape, from constitutional amendments, to reforms in electoral laws and judicial procedures. Their voices often carry weight in public discourse, given their expertise and stature. Through scholarly writings, participation in law reform commissions,

and advocacy for institutional reforms, SANs influence the evolution of the legal system. This role highlights their responsibility not only to clients but also to the nation at large. For example, Chief Frederick Rotimi Williams, SAN, played a key role in drafting Nigeria's 1979 Constitution, as he served as the Chairman of the Constitutional Drafting Committee leaving a lasting institutional legacy

7. Influence on Legal Education

The influence of Senior Advocates of Nigeria on legal education is both direct, indirect and far-reaching, shaping not only how law is taught but also how it is practiced and internalized by the next generation of lawyers. Their position at the peak of the profession, gives them authority and responsibility to contribute to the intellectual growth and ethical development of the Bar.

One of the most significant ways SANs impact legal education, is through their involvement in curriculum development and reform. As legal practitioners with deep courtroom experiences, they are often consulted to ensure that university law faculties and the Nigerian Law School incorporate modern and practical aspects of law. They also play active roles as teachers and scholars. Many serve as visiting lecturers, adjunct professors, or external examiners in universities and the Nigerian Law School. They bring a wealth of practical knowledge into academic spaces. Finally, the role and significance of Senior Advocates of Nigeria is more than just personal or ceremonial prestige; they embody the highest traditions of the Bar and carry with them the duty to lead, to mentor, to safeguard the profession, and to promote justice. In performing these roles, SANs directly shape the ethos, standards, and global perception of the Nigerian legal profession.

CHALLENGES AND CRITICISMS OF THE SAN RANK

While the rank of Senior Advocate of Nigeria is widely recognized as the pinnacle of legal distinction, it has not been without its challenges and criticisms. Several concerns have been raised over the years regarding its processes, accessibility, and impact on the legal profession.

1. Transparency and Credibility of the Conferment Process

Questions have frequently been raised about the objectivity and fairness of the selection process. Critics claim that lobbying, favouritism, quota system, or political connections sometimes play roles in determining who is conferred with the rank. This perception undermines public confidence in the integrity of the process.

2. Cost and Burden of Application

The financial burden associated with applying for the rank has been a recurring challenge. For example, the application fee was increased to ₦1,000,000 in 2023 apart from other additional costs that will be incurred

during the process. For many lawyers, especially those outside major cities, this represents a financial barrier to attaining the rank.

3. Decline in Ethical Standards among SANs

Although SANs are expected to embody the highest ethical standards, instances of professional misconduct and indiscipline among some SANs have attracted criticism. Cases where SANs have been sanctioned or even suspended by the Legal Practitioners' Privileges Committee (LPPC) highlight the challenge of maintaining the prestige and integrity of the rank.

4. Over-Concentration of Opportunities

Because SANs enjoy privileges such as the right of first audience and greater professional recognition, clients often prefer to brief them in high-profile cases. This has been criticized as leading to an unequal distribution of opportunities, with younger or non-SAN lawyers struggling to gain visibility or handle significant matters.

5. Limited Representation of Diversity

Despite gradual reforms, there are still concerns about the under representation of women and lawyers from less urbanized regions among SANs. This raises questions about whether the rank fully reflects Nigeria's diversity and inclusivity.

6. Restriction to Superior Courts

By convention, SANs are barred from appearing in lower courts, which some argue limits access to justice, especially in areas where many cases begin at magistrates' or customary courts. Critics contend that this rule prioritizes prestige over the practical needs of the legal system.

It is important to **NOTE** here that notwithstanding the criticism, significant reforms have been introduced over the years to make the process of attaining the rank of Senior Advocate of Nigeria (SAN) more transparent, credible, and reflective of contemporary demands in the legal profession as reflected in the 2022 Guidelines of the LPPC.

THE FUTURE OF THE RANK OF SENIOR ADVOCATE OF NIGERIA

The rank of Senior Advocate of Nigeria has, since its inception in 1975, remained the pinnacle of recognition within the Nigerian legal profession. However, the future of the rank depends on how well Senior Advocates continue to adapt to societal expectations, professional needs, and global realities. To remain meaningful and credible, the SAN title must not only preserve its prestige but also evolve in ways that strengthen the administration of justice and the legal profession at large. Four key areas stand out in envisioning the future of the rank.

1. Sustaining Excellence and Integrity

The foremost challenge for the sustenance of the rank of Senior Advocate of Nigeria is maintaining its reputation for excellence and integrity. As the highest honour for legal practitioners, the rank will only continue to command respect, if it is conferred on truly deserving individuals. This requires the Legal Practitioners' Privileges Committee, to ensure transparency, merit-based selection, and the strict enforcement of ethical standards. Any perception of politicization, favouritism, or compromise undermines the rank. Going forward, SANs themselves must embody integrity by upholding the noblest traditions of the Bar and ensuring that their advocacy advances justice, rather than personal gain.

2. Strengthening Mentorship Obligations

The sustainability of the legal profession depends heavily on how well knowledge and values are transmitted to younger lawyers. The requirement that SANs appear in court with juniors is already a step in this direction, but more deliberate mentorship is needed. In the future, SANs must embrace their role as custodians of legal education by creating structured mentorship programmes and ensuring that younger lawyers gain not only technical skills but also ethical grounding. The future of the rank will, in large part, be measured by how well, SANs nurture the next generation of legal practitioners.

3. Promoting Diversity

Another area that the future must address is diversity within the SAN rank. Historically, the conferment has been dominated by male lawyers, with female SANs making up only a small fraction of the total. Promoting greater inclusivity by encouraging more women and underrepresented groups to attain the rank will enrich the profession and reflect the diverse society that we have in Nigeria. It will also inspire younger lawyers, showing that excellence and recognition in the legal profession are accessible to all, regardless of gender or background.

4. Adapting to Changes in Legal Practice

Finally, the SAN rank must evolve in response to the transformations reshaping legal practice globally. The rise of technology, globalization, and artificial intelligence is already changing how lawyers research, argue cases, and interact with clients. For SANs to remain leaders of the profession, they must embrace these changes, rather than resist them. This includes using technology to enhance advocacy and positioning Nigeria's legal system within the global legal market. The SAN of the future will not only be a courtroom advocate but also a thought leader on issues that define justice in the 21st century.

The future of the SAN rank depends on its ability to sustain its credibility, strengthen mentorship, embrace diversity, and adapt to the demands of modern legal practice. If these priorities are pursued with seriousness, the rank will remain a vital symbol of excellence in Nigeria's legal profession and continue to play a transformative role in shaping the law for generations to come.

CORE ATTRIBUTES OF A SENIOR ADVOCATE OF NIGERIA

The conferment of the rank of Senior Advocate of Nigeria is not merely a ceremonial recognition of professional distinction but also a solemn call to embody the highest ideals of the legal profession. Every SAN is, by virtue of this honour, entrusted with the responsibility of preserving the dignity of the Bar and shaping the values of generations to come.

To achieve this, new Senior Advocates must constantly cultivate and live by certain core attributes that define not just their practice but their entire professional and personal lives. These attributes include:

1. Integrity

Integrity is the bedrock of the legal profession. The rank of Senior Advocate of Nigeria demands unwavering honesty and adherence to principles, even when it may be inconvenient or unpopular. A Senior Advocate of Nigeria must never be found compromising the truth or engaging in questionable conduct. Integrity builds trust with the court, with clients, and within our society. It is this trust that sustains the authority of the rank.

2. Honesty

Closely tied to integrity is honesty. A SAN must be absolutely truthful in his or her representations before the court and in all professional dealings. This means avoiding exaggeration, misrepresentation, and or concealment. Honesty enhances the credibility of the profession, while dishonesty undermines the justice system and erodes public confidence in the Bar.

3. Loyalty to the Profession

The rank of SAN is not a personal trophy but a charge to defend the legal profession itself. Every SAN owes a duty of loyalty to the Bar, protecting its traditions, upholding its values, and ensuring that it continues to thrive. This loyalty sometimes requires subordinating personal or client interests to the larger interest of justice and the profession.

4. Respect

Respect is both given and earned. SANs are expected to show deference to the court, courtesy to colleagues (both junior and senior), and civility to litigants and other stakeholders in the justice system. Respectful conduct enhances

the solemnity of court proceedings and demonstrates the maturity expected of the rank.

5. Humility

The SAN rank is a recognition of excellence, not a license for arrogance. Humility ensures that the SAN remains accessible, open to learning, and willing to serve. A humble SAN inspires confidence and fosters goodwill, while arrogance diminishes the dignity of the rank and alienates colleagues and the public.

6. Candor

Candor requires forthrightness and transparency in dealings with the court and clients. A Senior Advocate of Nigeria must never mislead a judge, falsify evidence, or manipulate facts. Candor is a safeguard for the fairness of trials and ensures that justice is not compromised for technical advantage.

7. Knowledge

Knowledge is the currency of advocacy. A SAN must demonstrate mastery of substantive law, procedure, and evidence, while also staying updated with emerging legal trends. Continuous study and intellectual growth are indispensable if SANs are to remain leaders and credible authorities in the legal profession.

8. Fiduciary Openness

As custodians of their clients' trust, SANs are expected to be completely transparent in financial and professional dealings. They must manage client funds responsibly, avoid conflicts of interest, and act with scrupulous honesty. Fiduciary openness protects both clients and the reputation of the profession.

9. Competence

Excellence in legal practice requires more than years of experience; it requires demonstrable competence. Senior Advocates of Nigeria must show diligence in preparing cases, skill in advocacy, and sound judgment in strategy. Competence reassures clients, assists the court, and upholds the honour of the rank.

10. Personal Conduct (Private and Public)

The influence of a SAN goes beyond the courtroom. Because the rank carries visibility and prestige, a Senior Advocate of Nigeria's personal conduct in private and public life must reflect dignity, moderation, and responsibility. Scandalous or unethical behaviour in personal life has the potential to taint the entire profession.

11. Respect for Seniority

The traditions of the Bar place emphasis on seniority, order, and courtesy. SANs must show respect to those who have come before them, while also fostering an environment where junior colleagues are treated with fairness and encouragement. This balance of respect sustains the spirit of the profession.

12. Probity

Finally, probity requires SANs to be transparent, accountable, and financially upright. They must avoid corrupt practices, shady dealings, or abuse of privilege. The profession and society at large look up to SANs as examples of incorruptibility and honour, and this standard must be jealously maintained.

For every new SAN, these attributes must not remain abstract ideals but daily guiding principles. The profession and indeed the Nation will only continue to hold the rank in high esteem, if its holders embody these virtues in their practice and in their lives.

A CHARGE TO THE NEW SENIOR ADVOCATES OF NIGERIA

To you, the newly elevated to the rank of Senior Advocate of Nigeria, I say this: The honour you have received is not a prize but a solemn responsibility. It calls you to live and practice at the very highest level of the profession, embodying values that preserve the dignity of the Bar and strengthen public trust in the administration of justice.

You must be men and women of integrity, unshaken in truth and principle, never compromising for convenience or gain. You must uphold honesty, ensuring that your words before the court, your dealings with clients, and your interactions with colleagues are always marked by truthfulness. Your loyalty must be to the profession itself, to its traditions, its standards, and its noble calling. In every situation, let the interest of justice and the preservation of the Bar guide your choices. Carry yourselves with respect for the court, for your colleagues, and for the public whom you serve.

Walk with humility; let the rank elevate your sense of service, not your pride. Exercise Candor in all your dealings, never misleading the court or obstructing the truth. Deepen your knowledge, for leadership at the Bar requires continuous study, sound judgment, and mastery of the law.

Your personal conduct, both in private and public, must be beyond reproach, for the eyes of the profession and the Nation are always upon you. Honour seniority within the Bar, while also nurturing those who come after you, preserving the collegial spirit of our profession. Above all, live by probity, ensuring that your financial and professional dealings remain untarnished by corruption or abuse.

This, then, is the charge: wear the silk with pride, but also with restraint. Let it remind you daily of the greater duty you owe, to justice, to the profession,

and to the Nigerian people. For it is only by living these values that the rank of Senior Advocate of Nigeria will continue to shine as a mark of excellence, and only by your example that the next generation will learn what it truly means to be a leader of the Bar.

CONCLUSION

The rank of Senior Advocate of Nigeria, is far more than an honorific title; it is an enduring institution at the heart of Nigeria's legal identity. Rooted in the English tradition of the Queen's Counsel but indigenized to reflect Nigeria's own realities, the SAN rank has grown into a symbol of professional excellence, ethical leadership, and institutional continuity. Over the decades, it has not only elevated the practice of law but also enriched the nation's jurisprudence, strengthened legal scholarship, and preserved the prestige of the Bar, as an instrument of justice.

As a legacy institution, the rank carries with it, obligations that transcend personal achievement. To be conferred with the silk is to accept a lifelong duty of service, to mentor the next generation of lawyers, to advocate for the rule of law and human rights, and to support reforms that keep the profession responsive to Nigeria's changing social and political realities. In this sense, the SAN rank functions as both a reward for past distinction and a call to future responsibility.

Yet, sustaining the tradition of the Inner Bar requires more than ceremony, it demands constant vigilance, adaptability, and accountability. The challenges of elitism, accessibility, and ethical lapses highlight the need for continued reform, as seen in the 2022 Guidelines, which seek to make the process more transparent, inclusive, and reflective of the ideals of justice. The survival and relevance of the rank will depend on how well its holders embody integrity, professionalism, and public service in practice.

Ultimately, the SAN rank endures not only because it crowns individual distinction but because it symbolizes the collective aspirations of the Nigerian legal profession. It is a living institution, one that binds tradition with progress, prestige with responsibility, and personal excellence with public duty. By safeguarding its values and adapting to new demands, the rank of Senior Advocate of Nigeria will remain central to the nation's legal and democratic development.

I wish you more successes in the years ahead. May this attainment be the beginning of better opportunities for you as individuals and the collective.

Thanks for your attentive listening.